Australian Greens submission to the JSCEM Inquiry into the 2025 Federal Election

1. Introduction

Democracy is strongest when a diversity of voices can participate meaningfully in election campaigns and be heard. For democracy to function effectively, information must be accurate, policy positions must be clear, and debate must be informed and inclusive — both during election periods and throughout the political cycle. Voters must be able to understand their choices and cast their ballots in confidence that their vote will help give effect to their values and priorities.

We also believe that politicians should work for outcomes that make life better for the people they represent — not for big corporate donors. Over the past decade, Labor and the Liberals have accepted nearly $300 million in donations from large corporations, including fossil fuel companies and the major supermarkets, while delivering billions of dollars in subsidies, tax breaks, and policy concessions in return. Meanwhile, Australians are struggling with rising rents, mortgages, and grocery prices, while the climate crisis continues to accelerate

If people are disillusioned, disengaged, or losing faith in a system that prioritises corporate profits over the public good, that loss of trust is understandable.

Confidence in Australia's democratic institutions has declined markedly over the past decade. The results of the 2025 election demonstrate that voters want more integrity, more choice, and better representation. To achieve this, we must strengthen the fairness, accessibility, and transparency of our electoral system.

This submission outlines the Australian Greens' key recommendations to the Joint Standing Committee on Electoral Matters (JSCEM) Inquiry into the 2025 Federal Election. It draws on our longstanding commitment to democratic reform, as well as the views of experts, community organisations, and integrity advocates.

PO Box 1108 Canberra ACT 2601 1800 017 011 greens@greens.org.au
F: AustralianGreens I: Greens T: AustralianGreens greens.org.au
ABN: 98 738 022 715

2. Behaviour and misinformation

The Australian Greens remain concerned about a significant increase in the number of reported instances of aggressive or threatening behaviour at polling booths experienced by our candidates, members and volunteers during the 2025 federal election.

We are particularly concerned by following trends:

- The filming of volunteers without their consent
- A specific targeting of younger people, especially young women
- Vexatious complaints to the AEC, which impaired the Electoral Commission's ability to run polling booths effectively
- Intentionally antagonistic behaviour, targeting other political or third party volunteers (rather than purely engaging with voters)
- Actions that create a hostile environment for voters, such as yelling or invading a voter's personal space, in such a way that impedes the ability for all citizens to exercise their democratic voting rights

While we share concerns about booth safety, we remain apprehensive about changes to the ability of volunteers from both political parties and third party organisations to campaign at polling booths, including any restriction on the number of volunteers or the number of materials allowed at the booth. We believe that the ability for member-based organisations, including charities and unions, to campaign and advocate during election periods is vital to ensuring meaningful participation in the democratic process.

The AEC must continue to play an active role in administering and facilitating transparent and fair elections, rather than being an arbitrator of inappropriate behaviour at polling booths.

2.1. Truth in Political Advertising

Publishing false or misleading information during an election campaign undermined the ability of Australians to make informed choices at the ballot box in 2025. The spread of climate-related misinformation alone was widespread and organised enough to prompt the Senate to establish a Select Committee on Information Integrity on Climate Change and Energy in July 2025 — a clear signal that the problem is not hypothetical but real, pervasive and damaging to public debate.

Analyses and submissions to-date to that committee document repeated examples of climate misinformation across mainstream and online media, showing how denialism, misleading claims about causes and solutions, and coordinated campaigns shaped public perceptions of climate policy and energy transition options, both in and out of election periods.[1] Independent monitoring has found a measurable level of misinformation in news coverage of climate solutions, and human-rights bodies warned that misinformation erodes the conditions for informed democratic participation.[2] These findings show the practical harm that unchecked political advertising and campaigning — when allowed to mislead — can cause to democratic deliberation.

In the previous Parliament, Labor introduced but did not pursue federal truth in political advertising legislation intended to give electoral authorities powers to require the correction or removal of materially false political ads. That work was not completed and the result is unfinished reform on a matter that voters overwhelmingly supported — clear rules to stop demonstrably false claims in political ads.

We therefore recommend the committee support the re-introduction of Truth in Political Advertising legislation, and actively pursue the resolution of key unresolved tenets: who will be the independent regulator (and with what powers), what test will define "materially false" in a way that is legally defensible, how rapid remedies (retractions, takedowns or corrections) would operate in practice, and what safeguards will prevent misuse of the law to censor legitimate political speech. Any new drafting should draw on the South Australian model and lessons from consultation processes.

3. Political finance

3.1. Electoral Reform

The Electoral Legislation Amendment (Electoral Reform) Bill 2024, which passed Parliament earlier this year, represented a missed opportunity to strengthen democracy and rebuild public trust in politics.

As highlighted already by other stakeholder's contributions to the Inquiry, rather than delivering genuine transparency and fairness, the laws were rushed through without proper scrutiny.

[1] QUT Digital Media Research Centre, submission 60, Select Committee on Information Integrity on Climate Change and Energy

[2] ADM+S, submission 21, Senate Select Committee on Information Integrity on Climate Change and Energy.

They now risk entrenching the dominance of major parties while restricting minor parties, independents and community voices as a whole. The process surrounding the reforms was deeply concerning: despite being more than 400 pages long and making fundamental changes to how elections are run and funded, the bills were introduced late last year and fast-tracked through Parliament. Negotiations between Labor and the Coalition took place behind closed doors, and key amendments were not made public even as the legislation was debated.

Major changes to electoral law should be reviewed by a multi-party parliamentary committee, yet this did not occur. As the Australia Institute noted, four in five Australians support such scrutiny — but it was denied.

While the reforms contained welcome improvements to transparency — including lower disclosure thresholds and more timely reporting of donations — these were buried within a larger package that, in effect, entrenched the two-party system. Donation and spending caps largely benefit established parties while limiting independents and new entrants. Additional "administrative funding" and increased public payments for sitting MPs further advantaged incumbents, while independent candidates, new parties, and civil society campaigners received no compensation for lost fundraising capacity.

The Australia Institute's analysis highlighted fairer alternatives that were never considered, including models like Seattle's democracy vouchers and tweaks to donation and spending caps that would have levelled the playing field.[3] Aggregation of donations across party branches, abolition of special exemptions for nominated entities, and disclosure of all cash-for-access and corporate donations were among measures identified as critical to restoring equity.

The Greens support JSCEM giving these matters careful consideration, particularly the recommendations that:

- A full review of donation and spending cap structures be conducted to ensure fairness across all candidates and parties.
- Public funding provisions be reconsidered to avoid disproportionately benefiting major parties.
- Independent, technical review processes are established — for example, through an expert body similar to Queensland's former Electoral and Administrative Review Commission — to oversee spending caps, party funding, and emerging concerns.

[3] https://australiainstitute.org.au/report/electoral-reform-bill-analysis/

- Cash-for-access and corporate donations be disclosed in full, regardless of size, and nominated entities be subject to the same limitations as other associated entities.
- Proper consultation occurs with experts, civil society, and the crossbench occur in advance of future reforms.
- It is ensured that charities can continue to have a voice in election debates by having fit-for-purpose rules and regulations, instead of treating them like political parties (discussed further in item 8).

We urge the Government to utilise JSCEM to revisit this framework to bring these reforms back in line with their original intent: strengthening democracy, rather than protecting incumbency, and ensuring fair and equitable participation for all candidates, parties, and voters.

3.2. Further Donations reform

The 2025 Federal Election has once again highlighted the urgent need for stronger political donations reform. While the recent Electoral Reform Bills represent a step forward, they will not fully address the loopholes and structural inequities that continue to allow vested interests to exert undue influence over Australian democracy.

The Australian Greens maintain our long-standing position that donations should be banned from industries with a track record of seeking political influence — including fossil fuels, banking, pharmaceuticals, defence, alcohol, tobacco, gambling, and property development. This is essential to level the playing field and to ensure that access to government is not determined by wealth or industry power.

There is no doubt that political donations from the fossil fuel sector have contributed to a decade of inaction on climate change. Similarly, donations from hotel and gambling interests have coincided with governments unwilling to confront the social harms of poker machines or address repeated findings of unethical and predatory conduct within casinos. Regardless of whether voters agree with those interests, they have a right to know who is funding the parties that seek to represent them.

Yet, most donations made in the lead-up to the 2025 election will not be disclosed for months to come, and some may never be fully revealed. Contributions are often channelled through business forums, “cash-for-access” events, or associated fundraising bodies, obscuring the true sources of influence.

The Greens continue to call for greater donation transparency by:

- Further lowering the threshold for disclosure of political donations;
- Ensuring that memberships, in-kind gifts, investments, and fundraising events are captured by disclosure laws; and
- Establishing a publicly accessible, searchable database that discloses donations in near real-time.

These measures are low-hanging fruit that must be implemented this term. However, transparency alone will not remove the influence of vested interests or the "arms race to the bottom" that competition for corporate donations creates.

The new definition of "gift" introduced by the Electoral Reform Bill 2024 is a modest improvement, as it now captures any payment beyond the actual cost of attendance at political events. However, significant exemptions remain. Both the Australia Institute and the Australian Democracy Network have recommended removing the following from the list of exemptions under section 287AAB(3):

- Membership fees to parties and associated entities;
- Affiliations to associated entities;
- Levies;
- Bequests; and
- Transfers of property within expenditure groups.

Removing these exemptions would close well-known loopholes that allow large sums to flow into the political system without adequate disclosure or accountability.

Donation caps and prohibitions on "dirty money" from industries seeking to influence government decisions are essential to cleaning up Australian politics. These reforms must be supported by other measures like strengthening the lobbying code of conduct, improving the Register of Interests, and ensuring that the National Anti-Corruption Commission operates as a strong, independent, and effective integrity body.

The Greens will continue to pursue these reforms to ensure that our democracy serves people and communities — not corporate donors.

4. Making elections fair

4.1. Repeal s.44

Half of Australia's population were either born overseas or have parents born overseas. Our parliament would be greatly enriched by their experience. However, the complexity and variety of international rules regarding granting and surrendering of citizenship can make it extremely difficult and expensive for people to confirm their citizenship status. We deal another blow to multiculturalism by discouraging these valued Australians from seeking election.

Equally, people with experience in public service are often well-suited to politics, yet s.44 restrictions on candidates holding 'an office of profit under the Crown' have compelled Commonwealth public servants to resign their employment for the duration of the election campaign. This often has significant professional consequences. The Australian Greens support previous recommendations of this Committee to repeal or amend s.44 and allow Parliament to adopt eligibility criteria more in line with contemporary community expectations.

Until an amendment is made, legislation should be introduced to reduce the professional risks to public servants by guaranteeing unsuccessful candidates who resigned their positions a right of return to their role (or equivalent) within a short period after the election results are finalised. The period in which the candidate stood aside from their role should not lead to loss or interruption of any accrued employment entitlements.

4.2. Addressing incumbency advantages

There are a number of inherent advantages enjoyed by incumbent candidates and those backed by large parties, including access to party resources, donors and media profile.

Spending caps will go some way to levelling the playing field for independent and small party candidates. However, other reforms are needed to remove the incumbency advantages that might discourage others from running, including:

- For government Ministers, access to government advertising budgets – the Grattan Institute has estimated that $50M of this is spent on promoting government achievements each year, particularly in the lead up to an election.
- Pork barrelling of government grants and spending programs – the sports rorts, commuter car parks, and Building Better Regions grants are well known examples of

government grants being directed to at-risk electorates to shore up election outcomes for government members.

The absence of fixed terms puts the timing of elections in the control of the government, providing significant strategic advantages to those who know when it will be called, including pre-planning, booking advertising space and venues, and waiting until scandals have blown over.

The Greens support the introduction of fixed term elections to minimise this advantage. In addition to designing spending caps to account for the incumbency advantage, reforms are needed to ensure these advantages are not weaponised. In particular, we recommend that the government:

- Adopt the recommendations set out by the Grattan Institute in New politics: Depoliticising taxpayer-funded advertising including strengthening approval requirements, legislative guidance for eligible campaigns, reporting and enforcement
- Strengthen oversight of the 'exceptional circumstances' provisions under the Parliamentary Business Resources Act 2017 to ensure expenditure is limited to genuine parliamentary business
- Ensure independence of grant allocations, resource the Australian National Audit Office to undertake performance audits of all grant programs, and
- Empower the National Anti-Corruption Commission to investigate allegations of pork-barrelling.

These measures will avoid the use of public funds for political advantage and help to level the playing field in election campaigns. The Australian Greens also support the recent announcement by the government that Australian Parliament House venues cannot be used for political fundraising

5. Extending voting rights

5.1. Lowering the voting age

Young people are more politically aware and engaged than ever before. They will be directly impacted by issues such as the climate crisis, housing insecurity, cost-of-living pressures, and cuts to education — yet are denied a say in who represents them and how their tax dollars are

spent. Sixteen- and seventeen-year-olds already contribute meaningfully to society through work, volunteering and civic participation, and deserve a voice in the decisions that shape their future.

Internationally, momentum to lower the voting age is growing. In 2025, the United Kingdom announced that 16- and 17-year-olds will be enfranchised for national elections, following the success of similar reforms in Scotland, Wales and several European countries. Evidence from these jurisdictions shows that young people are capable, informed voters and that early enfranchisement fosters lifelong democratic participation.

In Australia, youth-led campaigns such as Make It 16 and organisations including the Australian Youth Affairs Coalition and Y Australia are calling for reform. The Greens have long supported this change including through our Commonwealth Electoral Amendment (Lowering Voting Age and Increasing Voter Participation) Bill 2018, which would extend the right to vote to 16- and 17-year-olds and strengthen democratic participation across generations.

By lowering the voting age to 16, Australia would align with a growing international norm and ensure that its democratic system reflects who is subject to policy outcomes, and who holds the future.

5.2. Australians overseas

Currently, Australians living overseas can vote in Australian elections if they intend to return to Australia within 6 years. For many people, their intentions to return are unknown or will change. Further, many of the decisions being made by governments now will affect Australians regardless of their current place of residence – whether rights of return, superannuation settings, climate action and transition planning, education, health and aged care.

The impact of these decisions could affect citizens' interest in returning to Australia, the options available to their ageing parents, the opportunities available to their children. In recognition of their continued connection and interest, many other countries do not impose limitations on the voting rights of citizens living abroad. We recommend that the government remove the current six-year return restriction on voting rights for Australians living overseas.

5.3. Permanent residents

The government has proposed extending the franchise to permanent residents with New Zealand citizenship. The Greens would like to see pathways to citizenship, and associated voting rights, made easier for all Australian residents.

6. Improving access to polling booths

The Australian Greens believe that voting must be made as accessible as possible to all eligible voters, regardless of location, disability, or English language proficiency. While progress has been made in increasing accessible polling places, significant barriers remain. We have received reports of physical access issues at various polling booths around Australia. The success of phone voting options rolled out to accommodate voters unable to attend polling places due to COVID-19 isolation demonstrates the potential to extend this service to a broader range of voters whose disability prevents them from easily accessing a polling place. Any extension of phone voting must ensure the confidentiality and security of votes, and be part of a broader suite of accessible voting options.

The objective must be to provide the full range of accessible voting options at all polling places, with appropriately trained booth volunteers to assist voters in exercising their rights. Submissions from disability advocacy organisations highlight a number of practical measures, including:

- Ensuring polling places have full disability access, including accessible parking;
- Providing 'quiet' booths or designated times for voters sensitive to over-stimulation (e.g., limiting the distribution of how-to-vote materials during those periods);
- Including candidate photographs on ballot papers;
- Assisted electronic voting using VSAP technology.

We commend the AEC's planning to achieve 50% mobility-accessible polling places for the 2025 federal election. We look forward to receiving data on actual accessibility outcomes and recognise the challenges in securing suitable locations at short notice. We strongly encourage the AEC to commit to increasing the proportion of accessible polling booths at every federal election, with the long-term goal of achieving 100% accessibility. Greater consistency in election timing, such as through fixed-term elections, would assist the AEC in meeting this goal and ensure all voters, regardless of mobility, can participate fully in the democratic process.

7. Outreach, enrolment and education

The AEC plays a vital role in promoting public awareness of elections, enrollment, and ballot matters. We commend efforts to improve voter education and engagement, including

campaigns targeting disinformation and programs that encourage critical engagement with electoral information.

Some analysis shows that there is a rising rate of informal voting, particularly amongst young Australians in some areas. Much of this can be attributed to a decreasing interest in politics, dissatisfaction with how democracy is working and feeling like the candidates don't represent them.

It's crucial for the AEC and other parts of society to continue to invest in strengthened civics education and meaningful youth engagement — if young people don't feel connected to the system, they're far more likely to cast an informal vote, and that undermines the legitimacy of our elections.

Other significant challenges remain, particularly in ensuring high participation in elections by First Nations communities. While enrolment among First Nations voters is at historic highs, turnout remains unclear, especially in remote regions such as the Northern Territory. This is of heightened concern in the wake of the failed Voice referendum, which underscores the importance of inclusive participation and effective engagement with Indigenous communities.

We encourage the AEC to work closely with state and territory electoral commissions to consider federal trials of locally successful initiatives, such as the NT's mailbag enrolment pilot, and to invest in programs that improve accessibility for remote, linguistically diverse, and vulnerable voters, including those in detention facilities or hospitals. Adequate resourcing for outreach and enrollment programs is essential to ensure equitable access and meaningful participation in federal elections.

7.1. First Nations data

It was encouraging to hear from the AEC that First Nations enrollment on the electoral roll has reached a historic high, a testament to the commission's ongoing efforts. However, it is concerning that gaps remain in voter turnout data, meaning we cannot determine whether higher enrollment is translating into greater electoral participation. Acknowledging the complexity and sensitivity of collecting this information, we urge the committee to recommend that the AEC allocate resources, wherever possible, to explore practical and culturally appropriate ways to capture Indigenous participation at the voting booth, so that we can gain an accurate picture of First Nations engagement in elections.

8. Other matters

8.1. Fixed term elections

A number of submissions to this inquiry have highlighted the need for fixed-term elections. Fixed terms would remove some incumbency advantages, facilitate the better implementation of spending caps, and allow the AEC to plan more efficiently for polling places—including securing accessible venues, ensuring materials are printed on time, and managing the necessary intake of temporary staff.

The Australian Greens continue to support the adoption of fixed three-year terms for the House of Representatives, with aligned six-year terms for Senators.

8.2. Parliamentary staff and the work of our Offices

The 2022 Set the Standard review identified that job insecurity and unclear employment arrangements contribute to unhealthy workplace culture in Commonwealth parliamentary offices. For smaller parties and independents, uncertainty about the number and nature of staff allocations after each election creates stress, retention challenges and disrupts continuity of service.

While there has been some progress in providing guidance to parliamentary staff, structural uncertainty remains, particularly for smaller parties and independents. Resources such as the Parliamentary Workplace Support Service (PWSS) offer helpful advice on staffing arrangements, employment conditions, and workplace support, but they do not resolve the underlying issues around how many staff offices are allocated, how employment terms are determined, or how continuity of work is maintained across election cycles. We continue to support a review of the Members of Parliament (Staff) Act to clarify electorate staffing requirements and recommend that decisions on staffing allocations and employment conditions be made by an independent body — such as the Remuneration Tribunal or an Office of Parliamentary Staffing and Culture — to avoid politicisation and provide greater certainty for staff.

For senate-heavy parties such as ours, the case for better resourcing is especially clear. Unlike lower-house MPs who serve defined electorates, Senate offices represent entire states or territories and provide constituent support to people who may have nowhere else to turn. Our Electorate Office staff regularly assist with complex advocacy and casework — often on issues that fall between jurisdictions or that major-party MPs are unwilling or unable to take up — such as immigration, housing, environmental regulation, and social services. This work requires deep policy literacy, extensive liaison with government agencies, and sustained engagement with community organisations. Senate offices therefore carry heavier workloads

and operate in a high-complexity environment that is not adequately recognised in current staffing allocations. Strengthening resourcing and valuing the expertise of staff who deliver this critical advocacy is essential to ensuring fair and effective representation for all constituents.

8.3. Charities and public interest advocacy

Public interest advocacy is a vital part of Australia's democratic process. Charities and not-for-profit organisations provide independent analysis, policy recommendations, and represent voices that might otherwise be overlooked, particularly during election periods.

As highlighted by the Stronger Charities Alliance, recent electoral reform may undermine the capacity of charities to engage in issue-based advocacy during election periods, particularly where general donations now cannot be used for electoral purposes. While these reforms are intended to prevent partisan activity, they risk restricting legitimate public interest advocacy.

The Australian Greens support a review of these provisions to ensure charities can continue to operate effectively without jeopardising their charitable status or funding. We recommend that this review be completed before the next federal election, to provide certainty for the sector and safeguard its ongoing role in democratic debate.